

Judgment Sheet
IN THE LAHORE HIGH COURT AT LAHORE.
JUDICIAL DEPARTMENT

Civil Revision No. 27145 of 2017

Mst. Sadiqan Begum

Versus

Muhammad Siddique

JUDGEMENT

Date of Hearing	24.02.2025
Petitioner by:	Mian Tariq Hussain, Advocate
Respondent by:	Respondent proceeded against <i>ex-parte</i> vide order dated 02.02.2023 Khawaja Mohsin Abbas, Additional Advocate General (on Court's call)

KHALID ISHAQ, J. Through this Civil Revision Petition filed under Section 115 of the Code of Civil Procedure, 1908 (**CPC**), the petitioner calls into question the concurrent findings of facts recorded by the Courts below. The petitioner is aggrieved of dismissal of her Suit for Declaration and Permanent Injunction (the “**Suit**”), seeking cancellation of gift mutation No.600 dated 29.04.1998 (“**Impugned Mutation**”) in favour of her brother. The Suit was dismissed by the learned Civil Judge 1st Class, Pir Mahal (**Trial Court**) *vide* judgment and decree dated 29.11.2014 (**Trial Court Judgment**), which Judgment and decree was upheld by the learned Additional District Judge, Pir Mahal (**Appellate Court**) *vide* judgment and decree dated 18.02.2017 (**Impugned Judgment**). For ease of reference, the petitioner Mst. Sadiqan Begum shall hereinafter be referred to as the ‘**Plaintiff/Petitioner**’ and the respondent Muhammad Siddique as ‘**Respondent/Defendant**’.

2. Brief facts of the case are, as culled out with able assistance of the learned counsel for the petitioner, that one Muhammad Ibrahim (**Deceased**) predecessor-in-interest of the parties was admittedly owner of land measuring 59-Kanals & 18-Marlas in Chak No. 672/13 G.B, Tehsil Kamalia

District Toba Tek Singh (**Suit Property**). Exact description and measurement of the Suit Property is laid in Para No. 01 of the plaint. Plaintiff/Petitioner and Defendant/Respondent are the only surviving legal heirs of their father Muhammad Ibrahim, who breathed his last on **08.10.1998**.

3. Plaintiff/Petitioner filed the Suit on 24.02.2011 seeking cancellation of the Impugned Mutation recorded in favour of Defendant/Respondent. As per averments of the plaint, the Plaintiff/Petitioner asserted that after death of her father (Muhammad Ibrahim), she asked her brother (Defendant/Respondent) to incorporate inheritance mutation of the Suit Property in the revenue record; that the Defendant/Respondent assured that her name has been incorporated as a heir of Muhammad Ibrahim through inheritance mutation and that she has obtained 1/3rd share from the Suit Property. As a natural corollary, being only sister and an uneducated village household lady, she believed and trusted the words of her real brother and remained satisfied about her rights; the plaint further laid that Defendant/Respondent started paying her some amount as '*thaika*' of the Suit property. It is further averred in the Plaint that after the death of Plaintiff/Petitioner's husband, she faced hardships as there was no source of income for upbringing and education of her own children, therefore, in that hour of need she approached her brother for selling her share of the Suit property; pleaded that initially the Defendant/Respondent attempted to avoid any specific response to the request of the Plaintiff/ Petitioner and ultimately, prior to one month of filing of the Suit, he flatly refused to give her due share of the Suit Property. On this, the Plaintiff/Petitioner inquired from the revenue record and came to know about the existence of Impugned Mutation of gift. She negated the factum of any gift; alleging fraud, impersonation, without the knowledge and lawful consent of her deceased father recorded as such in the revenue record in connivance with the revenue officials of the area. She specifically refuted her information or acknowledgement qua *Offer, Acceptance and Transfer of Possession* of the Suit Property on the basis of any gift, consequently, she filed the Suit. The Defendant/Respondent contested the Suit by filing written statement, claiming that the Suit Property was gifted by Muhammad Ibrahim

(Deceased) within his lifetime by fulfilling all necessary ingredients of a valid gift; claimed that the Plaintiff/Petitioner was aware of the factum of gift as the same was allegedly brought about with her consent and knowledge, in presence of the witnesses. Defendant claimed that the deceased father of the parties made an offer of gift of the Suit Property, which offer was accepted by him, possession was delivered and on the same day i.e. 18.04.1998, *Rapt Roznamcha Waqiyati* No. 371 was recorded by the *Patwari*. It is further claimed in the written statement that the Impugned Mutation was presented in *Jalsa-e-Aam* conducted in the village, at the compound of village headman (Ali Akbar, PW-3) and same was accordingly sanctioned there on 29.04.1998. Defendant further agitated that he got conducted partition of this un-partitioned khata of the Suit Property and as a consequence, the total area of the Suit property has been reduced from 59-kanals 3-marlas to 54-kanals 3-marlas; the Defendant/Respondent claimed that ever since the transaction of gift, he is enjoying the possession of the Suit Property, cultivating the same but the Plaintiff/Petitioner never objected to such arrangements. Para No. 6 of the preliminary objection of the written statement seeks to make reliance on some factual aspects i.e. it was owing to some family disputes about the marriage proposals amongst family members that one Abdul Latif along-with others, who also had civil and criminal disputes with the Defendant/Respondent, that his sister got agitated and filed the Suit.

4. Issues were framed, parties were put to trial. Plaintiff appeared as her own solitary witness (**PW-1**) and reiterated her stance, as agitated in the plaint. Counsel for the plaintiff closed the affirmative evidence of the plaintiff by tendering various documents i.e. Exh.P1 to Exh.P8. In response, the Defendant/Respondent produced *Muhammad Arshad Naib Daftar Qanoongo (DW-1)*, *Zahoor Ahmad, Halqa Patwari (DW-2)*, *Ghulam Sarwar, Halqa Patwari at the time of alleged transaction of Gift (DW-3)*, *Mehtab Ahmad Khan, Tehsildar (DW-4)*, *Ali Akbar son of Gul Muhammad Village Headman (DW-5)*, *Abdul Ghani son of Feroz Din (DW-6)* and *Tahir Siddique son of Defendant Muhammad Siddique, Special Attorney of Muhammad Siddique (DW-7)*. Counsel for the defendant closed his

evidence by producing documentary evidence Ex. D-1 to D-14 in his statement.

5. Learned counsel for the Plaintiff/Petitioner contends that the concurrent findings of facts recorded by the Courts below are result of misreading and non-reading of record and evidence, therefore, the same are not sacrosanct and liable to be set aside while exercising revisional jurisdiction under Section 115 of the CPC. Further submits that the Courts below have failed to exercise the jurisdiction in lawful manner, the Impugned Judgments and Decrees are marred with material irregularities which tantamount to miscarriage of justice as right of inheritance of a female has been denied on the basis of an alleged transaction of gift which has not been proved in accordance with law; adds that the Impugned Mutation is of no legal effect as the transaction of oral gift has not been pleaded or proved in accordance with law.

6. The respondent has already been proceeded against *ex parte* vide order dated 02.02.2023 after recording repeated absences of the respondent and his counsel.

7. Arguments heard. Record perused.

8. Adumbrated facts make it a simple but usual of cases where a helpless female craves for her right of inheritance, having challenged the transaction of transfer of immovable property in favour of her male sibling, by the dint whereof she has allegedly been deprived of her inheritance share on the false pretense that since her predecessor (deceased father) had gifted the entire estate to his son during his lifetime, therefore, no share had come to vest in her when the predecessor breathed his last. Indeed, there may be challenges which are false, frivolous, statute barred, based on afterthoughts irked by subsequent family quarrels, nonetheless there is an unstoppable bent to invent grotesque devices conceived to deprive daughters, sisters, mothers, widows, orphans etc., the '*Oral Gift*' being the most fancied of all, employed by unscrupulous male members of the family. It is for this reason that there is overwhelming settled jurisprudence in this country to arrest all such emblems of frauds, forgery, impersonations and uncalled for

persuasions, nevertheless, the menace continues. The threshold tests of such transactions are now etched in our jurisprudence as tablet of stone, hardly requiring any further quest, however, if one needs reiteration, following principles be strictly adhered to, particularly in the context of the case in hand:

- a) *Beneficiary of the impugned transaction of gift/transfer of immovable property(s) bears the heavy onus to prove the transaction.¹;*
- b) *The beneficiary of a gift has to plead and prove three mandatory ingredients of gift i.e. declaration/offer by the donor, acceptance of gift by the donee; and, delivery of possession under the gift.²;*
- c) *The possession of immovable property by one of the siblings/LRs to the exclusion of others will be treated as constructive possession on behalf of all others, unless proved otherwise.³;*
- d) *In case of oral transactions, it is mandatory for a beneficiary of oral transaction to prove the same through positive evidence by supplying mandatory material particulars in the pleadings i.e. the time & date, the venue, the persons/witnesses in whose presence the alleged transaction was brought about.⁴*

¹ Muhammad Sarwar v. Mumtaz Bibi and others (2020 SCMR 276); Mst. Parveen (deceased) through LRs v. Muhammad Pervaiz and others (2022 SCMR 64); Mst. Hayat Bibi and others v. Alamzeb and others (2022 SCMR 13) Islam ud Din (deceased) through L.Rs. and others v. Mst. Noor Jahan (deceased) through L.Rs. and others (PLJ 2016 SC 616) Phull Peer Shah v. Hafeez Fatima (2016 SCMR 1225); Peer Baksh through L.Rs. and others v. Mst. Khanzadi and others (2016 SCMR 1417) Amjad Ikram v. Mst. Asiya Kausar and 2 others (2015 SCMR 1), Ibrahim Kamal v. Mst. Malooka Bibi and others (2012 SCMR 1), and Khaliqdad Khan and others v. Mst. Zeenat Khatoon and others (2010 SCMR 1370).

² Bilal Hussain Shah and another v. Dilawar Shah (PLD 2018 SC 698); Khalid Hussain and others v. Nazir Ahmad and others (2021 SCMR 1986); Government of Khyber Pakhtunkhwa through Chief Secretary Civil Secretariat, Peshawar and others v. Shah Faisal Wahab and others (2023 SCMR 1642); Mst. Tahira Samina and others v. Javed Saeed Tariq and others (2024 SCMR 24); Mst. Saadia v. Mst. Gul Bibi (2016 SCMR 662); Mst. Nagina Begum v. Mst. Tahzib Akhtar and others (2009 SCMR 623); Khalida Idrees and others v. Anas Farooq Chaudhary and others (PLD 2018 LAH 819); Mst. Rasheeda Bibi v. Mukhtar Ahmad and others (2008 SCMR 1384); Islam-ud-Din through L.Rs and others v. Mst. Noor Jahan through L.Rs and others (2016 SCMR 986); Mst. Shafqat Parveen v. Muhammad Iftikhar Amjad and others (2012 SCMR 1602); Rehmat Noor v. Zulqarnian (2023 SCMR 1645); Syed Ahmad v. Ali Akbar and others (2021 SCMR 743);

³ Mst. Tahira Samina and others v. Javed Saeed Tariq and others (2024 SCMR 24); Government of Khyber Pakhtunkhwa through Chief Secretary Civil Secretariat, Peshawar and others v. Shah Faisal Wahab and others (2023 SCMR 1642); Agha Syed Mushtaque Ali Shah v. Mst. Bibi Gul Jan and others (2016 SCMR 910); Fareed and others v. Muhammad Tufail and another (2018 SCMR 139);

⁴ Muhammad Shafiq Ullah and others v. Allah Bakhsh (deceased) through L.Rs. and others (2021 SCMR 763), Saddaruddin (since deceased) through L.Rs. v. Sultan Khan (since deceased) through L.Rs. and others (2021 SCMR 642), Muhammad Riaz and others v. Mst. Badshah Begum and others (2021 SCMR 605), Atta Muhammad and others v. Mst. Munir Sultan (deceased) through her L.Rs. and others (2021 SCMR 73), Muhammad Yaqoob v. Mst. Sardaran Bibi and others (PLD 2020 S.C. 338), Jubilee General Insurance Co. Ltd. Karachi v. Ravi Steel Company, Lahore (PLD 2020 S.C. 324), Muhammad Nawaz and others v. Sakina Bibi and others (2020 SCMR 1021), Muhammad Sarwar v. Mumtaz Bibi and others (2020 SCMR 276), Moiz Abbas v. Mrs. Latifa and others (2019 SCMR 74); Naveed Akram and others v. Muhammad Anwar (2018 SCMR 1095); Allah Ditta and others v. Manak alias Muhammad Siddique and others (2017 SCMR 402), Peer Baksh through L.Rs. and others v. Mst. Khanzadi and others (2016 SCMR 1417); Muhammad Nawaz through L.Rs. v. Haji Muhammad Baran Khan through L.Rs. and others (2013

- e) *The oral transaction of transfer of immovable property, be it sale, gift/tamleek, surrender or will etc. has to be proved separate from its incorporation/attestation in revenue record by way of sanctioning of the mutation since a mutation cannot by itself be considered a document of title.⁵;*
- f) *Where a gift, which excluded a legal heir, irrespective of whether such transaction is evidenced by registered deed, the Donee is required to prove original transaction and must justify the disinheritance of a legal heir from the estate.⁶;*
- g) *Parties are bound by their pleadings; no amount of evidence can be led beyond the scope of pleadings; and in case any such evidence is brought on record, the Court cannot consider and rely upon the same and has to discard it.⁷;*
- h) *Mere efflux of time does not extinguish the right of inheritance, thus, the question of limitation in case of inheritance and fraud is not attracted and becomes insignificant⁸;*

SCMR 1360) and Muhammad Nawaz through L.Rs. v. Haji Muhammad Baran Khan through L.Rs. and others (2013 SCMR 1300)

⁵ *Mst. Brikhna v. Faiz Ullah Khan and others (2020 SCMR 1681), Muhammad Yaqoob v. Mst. Sardaran Bibi and others (PLD 2020 S.C. 338), Fazal Ellahi (deceased) through its Legal Heirs v. Mst. Zainab Bibi (2019 SCMR 1930), Ghulam Sarwar (deceased) through L.Rs. and others (2019 SCMR 567), Islam ud Din (deceased) through L.Rs. and others v. Mst. Noor Jahan (deceased) through L.Rs. and others (PLJ 2016 S.C. 616), Phul Peer Shah v. Hafeez Fatima (2016 SCMR 1225), Muhammad Ishaq v. Muhammad Shafiq and 9 others (2007 SCMR 1773), Haji Muhammad Anwar v. Muhammad Ahmed and others (2007 SCMR 1961), Rehmatullah and others v. Saleh Khan and others (2007 SCMR 729), Aurangzeb through L.Rs. and others v. Muhammad Jaffar and another (2007 SCMR 236), Mst. Janntan and others v. Mst. Taggi through L.Rs. and others (PLD 2006 S.C. 322), Muhammad Akram and another v. Altaf Ahmad (PLD 2003 S.C. 688), Muhammad Lehrasab Khan v. Mst. Aqeel un Nisa and 5 other (2001 SCMR 338), Muhammad Ihsaq and another v. Mst. Gazala Riaz and 8 others (1997 SCMR 974) and Mst. Noor Fatima and another v. Begum Bibi and another (1990 SCMR 629)*

⁶ *Fareed and others v. Muhammad Tufail and another (2018 SCMR 139); Mst. Tahira Samina and others v. Javed Saeed Tariq and others (2024 SCMR 24)*

⁷ *Moiz Abbas v. Mrs. Latifa and others (2019 SCMR 74); Saddaruddin through LRs v. Sultan Khan (Since deceased) through LRs and others (2021 SCMR 642) Muhammad Nawaz alias Nawaza and others v. Member Judicial Board of Revenue and others (2014 SCMR 914) Combined Investment (Pvt.) Ltd. V. Wali Bhai and others (PLD 2016 Supreme Court 730); Muhammad Iqbal v. Mehboob Alam (2015 SCMR 21); Messrs Essa Engineering Company Pvt. Ltd. and another v. Pakistan Telecommunication Company Limited and another (2014 SCMR 922)*

⁸ *Mohammad Boota (deceased) through L.Rs., and others v. Mst. Fatima daughter of Gohar Ali and others (2023 SCMR 1901), Noor Din (deceased) through LRs v. Pervaiz Akhtar and others (2023 SCMR 1928), Salamat Ali and others v. Muhammad Din and others (PLD 2022 S.C. 353), Syed Kausar Ali Shah and others v. Syed Farhat Hussain Shah and others (2022 SCMR 1558), Faqir Ali and others v. Sakina Bibi and others (PLD 2022 S.C. 85), Muhammad Sharif and others v. MCB Bank Limited and others (2021 SCMR 1158), Haji Wajdad v. Provincial Government through Secretary Board of Revenue, Government of Balochistan, Quetta and others (2020 SCMR 2046), Shabla and others v. Ms. Jahan Afroz Khilat and others (2020 SCMR 352), Ghulam Farid and another v. Sher Rehman through LRs. (2016 SCMR 862), Syed Mehmood Ali Shah v. Zulfiqar Ali and 5 others (PLD 2013 SC 364) and Messrs Paramount Spinning Mills Ltd. v. Customs, Sales Tax and Central Excise Appellate Tribunal and another (2012 SCMR 1860), Muhammad Iqbal and 5 others v. Allah Bachaya and 18 others (2005 SCMR 1447), Muhammad Zubair and others v. Muhammad Sharif (2005 SCMR 1217) and Dr. Muhammad Javaid Shafi v. Syed Rashid Arshad and others (PLD 2015 SC 212); Peer Baksh through LRs and others v. Mst. Khanzadi and others (2016 SCMR 1417); Khan Muhammad through L.Rs and others v. Mst. Khatoon Bibi and others (2017 SCMR 1476), Muhammad Mahmood Shah v. Syed Khalid Hussain Shah and others (2015 SCMR 869); Rehmatullah and others v. Saleh Khan and others (2007 SCMR 729), Arshad Khan v. Mst. Resham Jan and others (2005 SCMR 1859); Khair Din v. Mst. Salaman and others (PLD 2002 SC 677); Mst. Gohar Khanum and others v. Mst. Jamila Jan and others (2014 SCMR 801); Ghulam Ali and 2 others v. Mst. Ghulam Sarwar Naqvi (PLD 1990 Supreme Court 1)*

9 Considering the above settled principles, while juxtaposing the facts of the case in hand, this Court is of the opinion that both the Courts below have acted illegally and with material irregularity while exercising jurisdiction.

10. Though the impugned judgments are depleted of patent illegalities, material irregularities, misreading and non-reading of the record, however, considering the limited scope of revisional jurisdiction against concurrent findings of facts, some of the material illegalities, irregularities, mis-readings and non-readings are discussed below in the sequence of principles explicated above:

- a) Defendant/Respondent claimed that Suit Property was not available for inheritance as the same was purportedly gifted to him by his old age father some four (4) months prior to his death⁹, therefore he was ‘the’ witness who had to take the witness stand to prove necessary ingredients of gift but he did not opt to appear; there is no plausible explanation for his nonappearance, and instead he banked upon the testimony of his son (**DW-7, Tahir Siddique**) as his attorney. In the facts and circumstance of the case and in view of the unequivocal position in terms of *Article 129(g) of the Qanun-e-Shahadat, 1984*, it does not behoove to reason as to how such fatal & inherent defect escaped the attention of both the Courts below. Defendant’s son was in no position to testify on behalf of his father regarding offer & acceptance of gift. The written statement filed by the Defendant/Respondent does not find mention the presence of DW-7 on the alleged occasion of oral gift, thus, the mandatory ingredients of offer of gift by the donor and acceptance thereof by donee, have gone abegging in this case. Therefore, it is held that nonappearance of Defendant/Respondent is an incurable defect in his quest to

⁹ Date of purported gift is 17/18.04.1998, whereas the date of death is admitted as 08.10.1998 (see Ex. D-14, Death Certificate of Ibrahim (Deceased). Age of Ibrahim (Deceased) as recorded in Ex- D-14) is 75 years on the date of alleged gift, however, the same is invariably stated between 80 to 85 years, by defence witnesses, see (DW-5, Ali Akbar, village headman)

prove the gift¹⁰. In order to prove her case, the Plaintiff/Petitioner appeared as PW-3 and supported the contents of plaint; she deposed that her deceased father never gifted the Suit Property to the Defendant/Respondent, the same is outcome of fraud. She specifically stated that she was never aware of any such transaction. This statement of the Plaintiff/Petitioner had clearly shifted the onus of prove to Defendant/Respondent being the beneficiary of oral gift, which he has failed to discharge by shying away from appearance as a witness. It is ironic to note that the first line of the findings recorded by learned Civil Judge would start from the words: *‘[T]hat the defendant appeared through his attorney Tahir Saddique, and recorded the statement as DW.¹¹’*, yet the Suit was consistently dismissed.

- b) While non-suiting the Plaintiff/Petitioner, by erroneously relying upon the continuous possession of the Defendant/Respondent, the Courts below have also failed to appreciate that in absence of proof of a valid gift, the continuous possession of the Defendant/Respondent being the only male surviving member of the family was constructive possession on behalf of her sister, an uneducated villager lady. In this respect, it is important to refer to the statement of Ali Akbar, the village headman (DW-5), produced by Defendant/Respondent, who had explicitly stated that *“the possession was of Muhammad Siddique since inception, though Gardawri used to be recorded in the name of Ibrahim but since they were father and son, the possession was always with Siddique”*. The factor of having possession of the Suit Property by the only brother of the Plaintiff/Petitioner lady cannot solely confirm the transaction of the Impugned Gift. Merely because the Defendant/Respondent brother was in possession of the land does not mean, let alone established, that the land was gifted to

¹⁰ *Muhammad Ejaz and 2 others v. Mst. Khalida Awan and another* (2010 SCMR 342)

¹¹ See para 9 of the Trial Court Judgment.

him. However, it itself confirm that he took advantage of his gender and position and made the best out of the vulnerability of a dependent female.

- c) A perusal of the written statement filed by the Defendant/Respondent leads to only one inescapable conclusion that the Defendant had failed to plead the necessary ingredients of oral transaction of gift. Neither the specific venue of the oral transaction of gift is mentioned nor its date, time and witnesses have been spelt out. So far as the date of impugned oral transaction is concerned, it further destroys the case of the Defendant/Respondent; para 3 of the preliminary objections of the written statement pleads that on the day of transaction of oral gift i.e. 18.04.1998 *rappat roznamcha waqaiti* No. 371 was got recorded by the *Patwari* of revenue estate. For the convenience, the relevant part is reproduced below:

یہ کہ مدعیہ کو شروع سے انتقال متدعویہ کا علم تھا اور ہے۔ بلکہ مدعیہ اور روبرو گواہان محمد ابراہیم متوفی والد فریقین نے اراضی متدعویہ کے بہہ کرنے کی پیشکش کی اور مدعا علیہ نے پیشکش بہہ کو قبول کیا اور بہہ کے روز قبضہ عراضی متدعویہ علم و آگاہی مدعیہ میں مدعا علیہ کو دیا گیا اور اسی روز یعنی 18-04-1998 کو رپٹ روزنامچہ واقعانی نمبری 371 پٹواری حال حلقہ کو درج کروائی۔ اور مورخہ 29-04-1998 کو دیہ مذکور میں جلسہ عام میں انتقال متدعویہ بہہ تصدیق و تکمیل ہوا۔

The above makes it abundantly clear that no amount of evidence can cure this inherent defect of pleadings, which conspicuously fail to put forth the name of the witnesses of the oral transaction, the exact date, time and venue thereof. On the first blush, one may infer that the words '*Ussi Rooz* i.e. 18.04.1998' employed the date of '*Rapt Roznamcha Waqiati* (Ex. D1), somewhat indirectly puts forth the date of transaction of gift, however, DW-7's attempt to supply the date of transaction to sanctify the alleged transaction has further destroyed the entire facade. During his cross examination he says that it was evening time when his grandfather Ibrahim

called the witnesses to offer gift: 'اس وقت شام کا وقت تھا', whereas, in the next breath he stated that on 18.04.1998, they all visited the patwari at 11:00 clock. It is also of note that Tahir Siddique (DW-7) repeatedly asserted that Ibrahim himself called and gathered all the witnesses, whereas, Abdul Ghani (DW-5) stated that Ibrahim called him through his grandson Tahir. Needless to add that all these statements are beyond the scope of pleadings and in terms of Order VI Rule 7 of CPC, no amount of evidence may be led or considered which is beyond pleadings.

- d) The gist of witnesses and documents produced by the Defendant/Respondent (DW-1 to DW-7 & Ex. D-1 to D-14), explains that none of these seven witnesses and fourteen documents relate to transaction of alleged gift; these witnesses and documents purport to support the Impugned Mutation No. 600, sanctioned on 29.04.1998 (Ex. D-2), albeit without any success to prove that either. Having concluded that there is absolutely no evidence regarding transaction of impugned gift and that a mutation cannot by itself be considered a document of title, it is awfully evident that even the Impugned Mutation has not been proved in terms of Section 42 of the Punjab Land Revenue Act, 1967, which required that such mutation had to be presented and sanctioned in the common assembly (*Jalsa-e-Aam*) of the estate concerned. Perusal of the testimonies of Ghulam Sarwar, (*Patwari* Revenue estate, DW-3), Mehtab Ahmed Khan (*Tehsildar*, DW-4) would reflect them repeatedly insisting that the Impugned Mutation was presented, processed and sanctioned in common assembly at the compound of village headman Ali Akbar, on the contrary, Ali Akbar (DW-5) stated that Impugned Mutation was sanctioned at 'Tehsil Office, Peer Mahal Katchery'.
- e) A simple glance at Impugned Mutation (Ex. D-2) would conclude that even this document does not bear signature or thumb impression of Defendant Muhammad Siddique, as an

acknowledgement of gift or acceptance of possession. Ex. D-2 further lacks the due care and caution required to be exhibited by the revenue officials for incorporating such transactions. Learned law officer present on court's call has fairly assisted the court that the conduct of revenue officials in sanctioning gift mutation is found wanting and they failed to discharge their duty of employing extra care while incorporating mutation of gift, which evidently deprived a female heir of her inheritance share.

11. The above leads to unfortunate conclusion that rather than supporting his widow sister in the hour of her greatest need, the Defendant/Respondent turned into a predator to deprive his sister of her rightful inheritance and has successfully managed to do so for 27 long years. It is an unfortunate fact that male members of families deprive their female relatives of their legal entitlement to inheritance and in doing so *Shariah* and law is violated¹². Supreme Court of Pakistan in the case of *Ghulam Ali supra*¹³ had observed that 'relinquishment' by female members of the family was contrary to public policy and contrary to *Shariah*. Competing claims, notwithstanding, Plaintiff/Petitioner's entitlement in her father's estate is a common ground; being a female in a Muslim household, it was her due, conferred by Divine Law, recognized by the law of the land; it is so ordained in Sura Al-Nisa (4/10). Given the preponderance of conferment, such a right, rooted into Personal Law, has to be jealously guarded, therefore, a heavy onus is cast upon the claimant to demonstrate that a female legatee had parted with her entitlement by choice and for considerations, consciously, without duress or uncalled for persuasions, by those placed qua her in advantageous positions¹⁴. Frequent practice of male heirs resorting to fraud and other tactics to deprive female heirs from their share of inheritance while such deprivation caused suffering to those deprived, it also unnecessarily taxed the judicial system of the country, resulting in a needless waste of resources. Each and every day that a male heir deprived a female heir was also an

¹² "*Mst. Aksar Jan and others v. Mst. Shamim Akhtar and others*" (2025 SCMR 88)

¹³ "*Ghulam Ali and 2 others v. Mst. Ghulam Sarwar Naqvi*" (PLD 1990 Supreme Court 1)

¹⁴ *Shabla and others v. Ms. Jahan Afroz Khilat and others* (2020 SCMR 352)

abomination because it contravened what has been ordained by Almighty Allah¹⁵.

12. The upshot of the above is that concurrent findings of the fact recorded by the Trial Court vide its Judgment and Decree dated 29.11.2014 and upheld by virtue of Appellate Judgment and Decree dated 18.02.2017 fall well within the exceptions of interference for exercising revisional jurisdiction of this Court, the same are, therefore, set aside. Consequently, the Suit filed by the Plaintiff/Petitioner is hereby Decreed as prayed for, with costs throughout. This Civil Revision stands allowed in the above terms.

(Khalid Ishaq)
Judge

APPROVED FOR REPORTING.

(Khalid Ishaq)
Judge

F. Waiz!

¹⁵ Tahsinullah v. Mst. Parveen (deceased) through L.Rs. and others (2022 SCMR 346); Mst. Parveen (deceased) through LRs v. Muhammad Pervaiz and others (2022 SCMR 64); Ghulam Qasim and others v. Mst. Razia Begum and others (PLD 2021 Supreme Court 812)